

Mohd. Javed Naiyer v. Kanpur Electricity Supply Co. Ltd.

High Court of Judicature at Allahabad · Division Bench · 12 May 2016 · WRIT - C No. 21939 of 2016 · **Writ allowed; demand notice and bill quashed; fresh assessment directed.**

HEADNOTE

A provisional assessment notice under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 must specify a date for hearing and disclose the basis of the assessed amount. A notice that does neither is not in accordance with law, and the consumer is not afforded the opportunity the clause requires. Demand notice and bill quashed; final assessment to be made within six weeks after considering objections, with reasons, in light of Ashok Kumar.

FACTUAL SUMMARY

Mohd. Javed Naiyer challenged a Kanpur Electricity Supply Company demand notice of 25/26 February 2016 and the bill of 19 February 2016 for Rs. 7,76,381. He said he never received the provisional assessment, could not reply, and that the licensee treated the assessment as final and issued a recovery certificate. He relied on Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005, which requires the notice itself to fix a date for hearing. The notice specified neither a hearing date nor the basis of the assessed amount.

REUSABLE CONSTRUCTIONS

1. A provisional assessment notice under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 must itself specify a date for hearing; omission of that date means the notice is not in accordance with law and the consumer is not afforded the opportunity the clause requires. ¶ 1-2
2. A provisional assessment notice that does not disclose the basis of the assessed amount is defective; a lump-sum demand without that foundation cannot stand. ¶ 1-2

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional-assessment-notice

HOLDING

A provisional assessment notice under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 that does not indicate a date for hearing, as Clause 6.8(b)(1) requires, and does not disclose the basis of the assessed amount is not in accordance with law. The consumer is not afforded the opportunity Clause 6.8(b) provides. The demand notice dated 25/26.2.2016 and bill dated 19.2.2016 are quashed. Final assessment shall be made within six weeks after considering the petitioner's objection, with reasons meeting those objections, in the light of Ashok Kumar v. State of U.P., 2008 (6) ADJ 660 (DB). ¶ 1-2

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion A provisional assessment notice under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 must specify a date for hearing and disclose the basis of the assessed amount. A notice that does neither is not in accordance with law, and the consumer is not afforded the opportunity the clause requires.. ¶ 1-2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660			1-2	Referred

